

Court No. - 39

Case :- WRIT - C No. - 2018 of 2019

Petitioner :- M/S Anees Rayin And Company

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shiv Kumar
Singh Rajawat

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Suresh Kumar Gupta, J.

Heard Mr. Bidhan Chandra Rai, learned counsel for the petitioner and Ms. Usha Kiran, learned counsel for the respondents.

The petitioner in the writ petition is seeking quashing of the notice-cum-final assessment order dated 01.12.2018 and temporary disconnection order dated 24.11.2018.

The brief facts of the case are that the meter of the petitioner was changed and new meter was installed and the old meter was sent for testing. The testing was got done by M/s Secure Meter Limited, Gurgaon, i.e. manufacturer of the meters.

The contention of learned counsel for the petitioner is that the procedure laid down in Clause 5.6 (c) (iii) of the Electricity Supply Code, 2005 has not been complied as the meter for the purpose of testing should be sent to the laboratory specified in the Code i.e. the testing laboratory of the licensee or at the option of the consumer to some other laboratory. It is stated that the petitioner was required to appear before the Executive Engineer, respondent no.2, on 25.09.2018, but the Electricity Test Division did not examine the meter on that date and subsequent date was never informed to the petitioner and thereafter the meter was sent for testing to M/s Secure Meter Limited, Gurgaon.

Ms. Usha Kiran, learned counsel for the respondents, prays that the matter may come up, as fresh, on 29.01.2019, to enable her to obtain instructions in the matter.

As prayed, put up as fresh on 29.01.2019.

Order Date :- 22.1.2019

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Court No. - 29

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shiv Kumar Singh Rajawat

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Rohit Ranjan Agarwal, J.

Ms. Usha Kiran, learned counsel for the respondents, who was granted time to seek instructions in the matter, submits that she requires some more time.

In view of above, let the matter be placed in the additional list on 07.02.2019 by which time she may complete instructions and if possible file the counter affidavit showing the name of Ms. Usha Kiran, as counsel for the respondents.

Order Date :- 29.1.2019

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Court No. - 38

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shiv Kumar Singh Rajawat

Counsel for Respondent :- Baleshwar Chaturvedi, Usha Kiran

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

By means of this writ petition the petitioner has come to this Court against the provisional assessment.

Mrs. Usha Kiran, learned counsel for respondents was requested to seek instruction and upon the instruction she submits that no final assessment has been made nor the petitioner has made any objection against the provisional assessment.

Sri Bidhan Chandra Rai, learned counsel appearing on behalf of the petitioner submits that no notice was served upon the petitioner with regard to the provisional assessment.

It is submitted by learned counsel for the department that provisional assessment has been made and final assessment has yet to be made. It is open for the petitioner to make a representation and file an objection before respondent No. 2- Assessing Officer/Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Electricity Distribution Division, Mauranipur, Jhansi.

It would be appropriate to direct the petitioner to file its objection to the provisional assessment, if final assessment has not been made and in the objection, the petitioner can raise its grievance that the provisions of Clause 5.6 of the Electricity Code, 2005 has not been complied with.

In case, the petitioner files its objections, the Executive Engineer will consider the same and pass appropriate order in accordance with law, as far as possible, within a period of one month.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to demand notice dated 01.12.2018.

With the aforesaid directions, the writ petition is **disposed of**.

Order Date :- 7.2.2019

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(Mrs. Manju Rani Chauhan, J.) (Abhinava Upadhyaya, J.)